
Appeal Decision

Site visit made on 2 September 2026

by **H Marriott MPlan MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 15th September 2026

Appeal Ref: 6006812

Green House, Cromer Road, Thorpe Market, Norfolk NR11 8TH

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Optimum Patient Care Ltd against the decision of North Norfolk District Council.
 - The application Ref is PF/25/1471.
 - The development proposed is for the change of use from bed-and-breakfast / small hotel to holiday let (*sui generis*).
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. The application form states that the holiday let use occurred in 2020. While it was clear to me during my site visit that the appeal site is already in use as a holiday let, it is not for me to determine whether or not a material change of use has occurred. I have removed the term 'retrospective' from the banner heading, as it is not a description of development. My assessment has been undertaken on the basis of the evidence before me and that planning permission has been applied for.
3. The appellant has submitted a Noise Impact Assessment (NIA) and revised Noise Management Plan (NMP) with the appeal. Established case law requires consideration of whether or not such material introduces a substantial difference or a fundamental change to the proposed development, and whether its admission would result in procedural unfairness. In this case, the NIA and NMP has been submitted in response to the Council's reason for refusal. It does not materially alter the nature of the proposed development. The Council was given the opportunity to comment on the additional material. I am therefore satisfied that no party would be prejudiced by taking it into account.
4. On 17 August 2026, the Government published a revised National Planning Policy Framework (the Framework). This latest version of the Framework has introduced plan-making and national decision-making policies. It is effective from the day of publication. The main parties were given the opportunity to comment on the revised Framework, and any comments received have been taken into consideration.

Main Issue

5. The main issue is the effect of the change of use on the living conditions of neighbouring occupiers, with particular regard to noise and disturbance.

Reasons

6. Green House is a two-storey Grade II listed building¹ located in a prominent position within Thorpe Market, adjacent to the village green and North Walsham Road (A149). The site lies within the Gunton Park and Thorpe Market Conservation Areas (CA). Green House has previously operated as a restaurant and, more recently, a hotel / bed and breakfast (B&B). Nearby properties include Toad Hall to one side whose garden adjoins the appeal site's rear boundary, The Barns at Thorpe Market holiday accommodation to the other side and Greenacre to the rear. Despite traffic associated with the A149 and the presence of other visitor accommodation, the area retains a predominantly residential character and a generally peaceful environment.
7. Under its former hotel / B&B use², rooms would typically have been occupied independently by couples, families or small groups, with an on-site management presence. By contrast, the proposed single holiday let could accommodate up to 20 guests (16 adults and 4 children)³ as one group, with no permanent on-site management presence. Consequently, the change of use has greater potential to generate noise and disturbance associated with larger groups socialising, congregating and undertaking activities together on a frequent basis, rather than acting independently as would typically occur with a hotel or B&B, with a correspondingly greater potential to affect the living conditions of nearby residents.
8. The appellant's NIA took place over 5 days and 4 nights, including when guests were present. It acknowledges the limitations of using acoustic data involving noise relating to the interactions of people in outdoor areas close to sensitive receptors. Nevertheless, applying a worst-case scenario based on noise levels associated with pubs and clubs in the absence of more specific guidance relating to large groups of people, it concludes that there is a low chance of NSRs being disturbed from the use of Green House as a holiday let.
9. However, Toad Hall does not appear to have been identified as an NSR. While I have no reasons to disagree with the findings in relation to other surrounding properties, including The Barns and Greenacre, it is unclear from the information before me whether the predicted noise levels at Toad Hall would comply with the relevant standards and noise guidelines referred to in the NIA. Moreover, the noise caused by people is inherently difficult to predict. Consequently, even if the NIA conclusions could be relied upon, it remains unclear the extent to which it captures the range of noise that could arise from occupation by a single group of up to 20 guests, including raised voices, amplified music and noise transmitted through open windows and the fabric of the building.
10. In any event, the conclusions of the NIA rely to some extent on compliance with the appellant's NMP, including an 11pm curfew. It is acknowledged an earlier 10pm curfew is currently in place and that, during my site visit, the use appeared well managed, with signs reminding guests to respect neighbours and observe quiet periods. The hot tub, a source of a number of concerns raised by interested parties, had also been removed. Nevertheless, NMP measures inherently depend upon the ongoing behaviour of guests and active site management.

¹ List entry: 1049784.

² Use class C1 Hotels of the Town and Country Planning (Use Classes) Order 1987 (as amended).

³ *sui generis*.

11. The NMP states that events, stag or hen parties and live music would not be permitted. It also provides a local management contact to meet guests on arrival and oversee their behaviour. However, that role would be reactive to some extent, with the NMP indicating that action would be taken if noise is heard. At that point, the living conditions of neighbouring occupiers may already have been harmed. Moreover, the current arrangement relies on an individual living close to the site and being available to respond at all times. There is no mechanism to ensure that a suitable alternative would be available during periods of absence, nor that a suitable alternative arrangement could be maintained in perpetuity should circumstances change. In these circumstances, a condition requiring such an arrangement would not be reasonable. Furthermore, these measures would not remove the potential for less effective management in the future should ownership or management arrangements change.
12. I have had regard to the complaints procedure, noise monitoring arrangements and the prospect of guests forfeiting deposits or having their stay curtailed for breaches of the NMP. Nevertheless, even without the hot tub, it is reasonable to expect that groups may seek to remain outdoors beyond the curfew, particularly during summer evenings when guests are more likely to consume alcohol outdoors, barbecue or socialise outdoors for extended periods. While such activities are not uncommon in gardens, the proposed use would increase the likelihood, frequency and scale of activity facilitating occupation by a single group of up to 20 guests. Moreover, unsupervised guests occupying the property on a short-term basis are less likely than permanent residents (or site managers) to have any ongoing relationship with neighbouring occupiers or incentive to behave in a neighbourly manner.
13. Likewise, it would be unrealistic to expect windows/doors to remain closed during warm weather when music is played indoors. While no speakers would be provided and guests own speakers are not permitted, portable speakers are commonplace and compliance with such a restriction could not be guaranteed. Consequently, I am not persuaded that adherence to the NMP could be relied upon in practice. Furthermore, an off-site complaints procedure would neither act as an effective deterrent nor provide an immediate remedy should noise and disturbance arise.
14. Overall, while some elements of the NMP could be secured by condition, others would be unreasonable or difficult to enforce. Consequently, I am not persuaded that the imposition of a condition to ensure compliance with the NMP as a whole would overcome the harm I have identified to neighbouring living conditions.
15. The appellant contends that Green House was in the past licenced to play music, host performances and serve alcohol until 1am, and that the holiday let results in fewer vehicle movements, with longer stays likely reducing guest turnover. However, those licensed activities took place within the context of a hotel/B&B operation with on-site management and supervision. Notwithstanding that larger groups are more likely to arrive and leave collectively, my concerns relate primarily to the unsupervised occupation of the property by a single group of up to 20 guests and the resulting potential for noise and disturbance affecting nearby residents, rather than the anticipated frequency of arrivals and departures. While I accept that a single booking may provide a clearer line of accountability and simplify management oversight, such measures do not overcome the harm I have identified.
16. I conclude that it has not been demonstrated that the change of use does not result in an unacceptable effect on the living conditions of neighbouring occupiers, with particular regard to noise and disturbance. In this regard, there is conflict with Policy

ENV6 North Norfolk Local Plan 2024-2040 (2025) which states that development will not be permitted which causes unacceptable impacts on the amenity of neighbouring occupants and requires regard to be given to the prevention of disturbance from noise.

Other Matters

17. In accordance with my duties under Section 66(1) and Section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990, I am required to have special regard to the desirability of preserving the listed building, its setting or any its features of special architectural or historic interest, and to have special regard to the desirability of preserving or enhancing the character or appearance of the CA. The significance of Green House derives from its special historic and architectural interest as an early 17th Century farmhouse, which was subsequently restored and refaced in galleted flint with and stone dressings. The Gunton Park CA designation encompasses the historic Gunton Park estate, including its parkland landscape, woodland, lakes and estate buildings and the settlement of Thorpe Marke on its periphery. Its special interest derives from the planned landscape and the historic relationship between the estate buildings and their parkland setting. The Thorpe Market CA derives its significance from the special architectural and historic interest of the village, including its historic buildings.
18. The development relates principally to a change of use although the submitted plans indicate a proposed garden wall. The Council raises no objection to its construction, subject to a condition relating to materials. The replacement of the existing close-boarded fence with a wall would offer a more traditional means of enclosure. In these circumstances, I am satisfied that the proposed development would preserve its setting and would cause no harm to the significance of Green House or the character and appearance of the CA.
19. Alongside rising costs, the appellant submits that the former B&B / hotel experienced a significant decline in customers following the COVID-19 pandemic and that there has been a broader shift within the hospitality sector towards self-catering accommodation and whole-property bookings. It is also acknowledged that the appellant has invested in the property as a holiday let to secure it ongoing tourism use. However, I have been provided with limited substantive evidence to demonstrate that the appeal proposal is the only viable option for the building. The appellant further contends that dismissal of the appeal could result in the loss of tourist accommodation and potentially leave the building unused, with consequent implications for its upkeep. Notwithstanding that the acceptability or otherwise of any alternative use, that is not a matter for me in determining this appeal, nor am I satisfied that the appeal proposal is the only option available.
20. My attention has been drawn to an appeal that was dismissed at Sutton Hall⁴. That appeal involved a different proposal and circumstances including the absence of a long-established hospitality use and has not therefore been determinative of the outcome of this appeal. I have assessed the appeal proposal on its own merits, and, having regard to the particular circumstances of the site and the evidence before me, I am not persuaded that a different conclusion is justified.
21. The appellant refers to case law⁵, concerning the characteristics of hotels and holiday accommodation. However, my findings do not turn on whether the former and

⁴ Appeal ref: 6001957.

⁵ including *Breachberry Ltd v Secretary of State* (1985) and *Mayflower Cambridge Ltd v Secretary of State* (1975).

proposed uses share certain functional characteristics. Rather, they are based on the likely effects of the proposed use on the living conditions of neighbouring occupiers, having regard to the particular circumstances of the appeal site, including the fallback use which differs for the reasons specified, and the evidence before me.

22. The Council has found the appeal proposal to be acceptable in all the other respects, including in relation to the principle of tourism use, parking and highway safety. Based on the evidence before me, I have no reason to reach a different view. I also note the letters of support received from some members of the community. However, these are neutral matters, which do not alter my findings on the main issue.

Planning Balance and Conclusion

23. Policy S3 of the Framework requires a presumption in favour of sustainable development. Whether Policy S4 or S5 is applied, the appeal proposal should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national-decision making policies in the Framework.
24. The development secures the continued tourism and reuse of Green House, a listed building within CAs. While there is insufficient evidence before me to conclude that the appeal proposal is necessary to secure the future maintenance or viable use of Green House, it nevertheless supports the buildings ongoing occupation, thereby assisting in the conservation of a heritage asset. The use also provides economic benefits through visitor expenditure and associated employment. Policies E2 the Framework states that substantial weight should be given to the economic benefits of proposals for commercial development which allow businesses to invest, expand and/or adapt, while Policy E4 supports rural business development including facilities to support tourism. These are important benefits to which I attach substantial weight in favour of the proposal, albeit recognising that the actual economic benefits arising would be modest. Similar support is provided by a number of policies in the development plan.
25. However, I have found that the development results in an unacceptable effect on the living conditions of neighbour occupiers, with particular regard to noise and disturbance. Consequently, there is conflict with Policy P3 of the Framework. This harm attracts considerable weight and results in conflict with the development plan as whole.
26. Taking into account the above conclusions, I find that the benefits of approving the development would be substantially outweighed by the adverse effects, when assessed against the national decision-making policies in the Framework. Accordingly, the proposed development would not be sustainable development.
27. Drawing the above together, the development conflicts with the development plan and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. For the reasons given above the appeal should be dismissed.

H Marriott

INSPECTOR